

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ethan Waterman	Team: Squad #10	CCRB Case #: 202201435	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Tuesday, 02/22/2022 11:24 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/22/2023	Precinct: 13
Date/Time CV Reported Wed, 02/23/2022 2:35 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 03/08/2022 12:37 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Blair Butler	12159	965672	007 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Qian Lovett	19066	969918	007 PCT
2. PO Vincent Giarratano	01333	970545	007 PCT
3. PO Carina Garcia	27268	968424	007 PCT
4. PO Jennifer Perdomo	08667	964699	007 PCT
5. SGT Khaatim Harrison	01054	947919	007 PCT
6. SGT Maris Garcia	00962	949005	007 PCT
7. PO Alexandria Kirklandclarke	25400	963095	007 PCT
8. PO Johnmin Wangbai	10280	972308	007 PCT
9. PO Radoslaw Kosiorek	09960	957747	007 PCT
10. PO Konstantin Kiselev	14302	971508	007 PCT
11. PO Alexis Rice	05299	963714	007 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Blair Butler	Force: Police Officer Blair Butler used physical force against § 87(2)(b)	§ 87(2)(b)
B . PO Blair Butler	Force: Police Officer Blair Butler used physical force against § 87(2)(b)	§ 87(2)(b)

Case Summary

On February 23, 2022, Sergeant Maris Garcia of the 7th Precinct called the Internal Affairs Bureau and filed this complaint on behalf of § 87(2)(b). The CCRB received this complaint on March 8, 2022.

On February 22, 2022, Police Officer Blair Butler of the 7th Precinct arrested § 87(2)(b). § 87(2)(b) requested medical attention and PO Butler accompanied him to § 87(2)(b) in Manhattan. At approximately 11:24 p.m., PO Butler pulled § 87(2)(b) by his handcuffed hands and § 87(2)(b) fell to the ground (**Allegation A, Force: Physical Force, § 87(2)(g)**). About a minute later, PO Butler allegedly punched § 87(2)(b) in the right ear (**Allegation B, Force: Physical Force, § 87(2)(g)**).

§ 87(2)(b) was arrested § 87(2)(a) 160.50

[REDACTED] • [§ 87(2)(b)] [§§ 86(1)(2)&(4)&(5)]

§ 87(2)(b) sustained a laceration behind his right ear during this incident. § 87(2)(b) of § 87(2)(b) sutured the laceration closed with three self-dissolving stitches (**BR 03-04**).

The investigation received surveillance footage from § 87(2)(b) (BR 05-08) and additionally received body-worn camera (BWC) footage from the following officers: PO Butler, Police Officer Carina Garcia, Sgt. Garcia, Police Officer Vincent Giarratano, Sergeant Khaatim Harrison, Police Officer Alexandria Kirkland-Clarke, Police Officer Konstantin Kiselev, Police Officer Radoslaw Kosiorek, Police Officer Qian Lovett, Police Officer Jennifer Perdomo, Police Officer Alexis Rice, and Police Officer Johnmin Wangbai (BR 09-23). The relevant aspects of this footage shall be discussed below.

Findings and Recommendations

Allegation (A) Force: Police Officer Blair Butler used physical force against § 87(2)(b)

This allegation stems from hospital surveillance footage. The investigation received surveillance footage from § 87(2)(b) that captured the emergency department ambulance triage area (**BR 05**). At the 09:27 timestamp, § 87(2)(b) who wears a black hoodie and pants on the left side of the screen, stands up out of his chair. § 87(2)(b) is handcuffed. It is apparent that PO Butler holds onto his wrists. § 87(2)(b) attempts to step towards the center of the triage area and PO Butler holds onto his wrists. PO Butler apparently pulls § 87(2)(b) back towards his chair. § 87(2)(b) stumbles backwards, knocks into the chair that he was initially sitting in, and ultimately falls to the ground. PO Butler and an EMT then lift § 87(2)(b) off the ground and seat him back in the chair.

In her CCRB interview (**BR 26**), PO Butler said that § 87(2)(b) was apparently intoxicated throughout this incident. § 87(2)(b) was both leg-shackled and rear-handcuffed. PO Butler, along with EMTs, transported § 87(2)(b) to § 87(2)(b) in Manhattan. Once at the hospital, PO Butler and the EMTs walked § 87(2)(b) into the emergency department. The EMTs walked to the side and waited for § 87(2)(b) to be cleared. A male EMT and PO Butler placed § 87(2)(b) on a stool once outside the ambulance. § 87(2)(b) still had trouble moving around given his state of intoxication. PO Butler waited with § 87(2)(b) for triage in the emergency department. § 87(2)(b) stood up and spoke with an EMT or a triage nurse. PO Butler stood next to § 87(2)(b) during this time. § 87(2)(b) asked the individual something, and as he came back, he fell down on his own. PO Butler did not remember how § 87(2)(b) fell to the ground. The male EMT accompanying PO Butler and § 87(2)(b) helped PO Butler pick § 87(2)(b) up from the ground. PO Butler and the male EMT sat § 87(2)(b) back up in the chair. § 87(2)(b) did not claim any new injuries at this point.

The investigation presented the surveillance footage noted above to PO Butler. PO Butler initially identified this moment as the moment addressed in **Allegation B**, noting that she saw from this perspective that she was already holding onto § 87(2)(b)'s handcuffs when he fell because he

had threatened to stand up and spit on her. PO Butler noted that § 87(2)(b) had already fallen at this point and that she did not want § 87(2)(b) to fall again. PO Butler, upon reviewing the footage that captures **Allegation B**, amended her statement, noting that the footage between the 09:23 and 09:40 timestamps of the emergency department triage area showed the first time that § 87(2)(b) fell. PO Butler did not further amend her statement.

PO Butler did not prepare a BWC recording at the time of the alleged force because she was prohibited from recording in hospitals per Patrol Guide Procedure 212-123 (**BR 26, 29**)

Per Patrol Guide Procedure 210-04 (**BR 32**), escorting officers are to remain with prisoners at all times while in the hospital.

Per Patrol Guide Procedure 221-01 (**BR 33**), members of service must consider the following criteria regarding the reasonable use of force: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the MOS; subject's violent history, if known; presence of hostile crowd or agitators; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

§ 87(2)(b), § 87(2)(g) § 87(2)(b)
attempted to get up and walk away from PO Butler. § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)

Allegation (B) Force: Police Officer Blair Butler used physical force against § 87(2)(b)

In his CCRB interview (**BR 24**), § 87(2)(b) told the investigation said that he was handcuffed and leg-shackled while seated in a chair at § 87(2)(b) in Manhattan. PO Butler stood near him. § 87(2)(b) told PO Butler, "Do you want me to turn around and spit in your face?" PO Butler said something in response, but § 87(2)(b) did not recall. § 87(2)(b) popped his lips at PO Butler but did not spit. PO Butler punched § 87(2)(b) on the right ear. § 87(2)(b) fell to the ground. PO Butler then said to § 87(2)(b), "§ 87(2)(b), you fell down. You fell down." § 87(2)(b) said that because of the punch, he sustained a cut to his right ear that required § 87(2)(b) to put in nine stitches.

The investigation received surveillance footage from § 87(2)(b) that captured emergency department ambulance triage area (**BR 05**). This is the only footage that captures the alleged misconduct. At the 10:50 timestamp, § 87(2)(b) sits in a chair in the upper left of the screen while PO Butler stands next to him. RN § 87(2)(b) stands next to the two in a blue shirt. EMT § 87(2)(b) and EMT § 87(2)(b) stand in black clothing at the center-top of the screen. PO Butler and § 87(2)(b) are obscured by the glass surrounding the reception booth. At the 10:57 timestamp, PO Butler grasps § 87(2)(b)'s right shoulder with her left hand and pulls her right arm back. PO Butler then swings her right arm forward towards § 87(2)(b)'s head. It is unclear where, if at all, PO Butler strikes § 87(2)(b). § 87(2)(b) then falls out of his chair and onto the ground. Both EMTs are in a position to see these events, and the female EMT apparently watches them in their entirety.

The investigation subpoenaed § 87(2)(b) to provide a statement (**BR 25**). § 87(2)(b) had no independent recollection of this incident and his recollection was not refreshed following review of § 87(2)(b)'s chart and of the surveillance footage.

In her CCRB interview (**BR 26**), PO Butler said she stood next to § 87(2)(b) while he sat down in a chair. § 87(2)(b) threatened to spit on PO Butler. § 87(2)(b) made a noise as if to ready to spit, began to stand up, and cocked his head up like he was going to spit. PO Butler put her right hand up to block her face from any spit and extended her other hand to grab § 87(2)(b) by his handcuffs to sit him back down. Before PO Butler could touch § 87(2)(b), § 87(2)(b) shifted the chair he was sitting in, lost his balance, and fell on his side. § 87(2)(b) hit his head against the wall

nearest him and the floor while falling down. PO Butler did not punch § 87(2)(b) in the face. § 87(2)(b) cut his ear open as a result of the fall. PO Butler did not see any other new injuries. § 87(2)(b) claimed that PO Butler had “cold-cocked” him. PO Butler did not recall if § 87(2)(b) made any other statements regarding any new injuries he sustained. PO Butler notified her sergeant that § 87(2)(b) alleged that PO Butler had punched him in the face.

Upon reviewing the surveillance footage noted above, PO Butler described the positioning of her hands as her left hand on § 87(2)(b)'s shoulder to feel if he was moving and the right hand up blocking her face from any potential spit from § 87(2)(b). PO Butler reiterated that § 87(2)(b) fell to the ground before she could touch him. § 87(2)(b)'s weight was going left to launch spit towards the wall and away from PO Butler, and his weight shifted enough in the chair that he fell to the ground. PO Butler did not punch § 87(2)(b) during the clip.

Sgt. Garcia and PO Kirkland-Clarke spoke with the two EMTs who were present during this incident. The investigation determined them to be EMT § 87(2)(b) and EMT § 87(2)(b). Between the 01:00 and the 02:25 timestamps of PO Kirkland-Clarke's BWC (**BR 14**), the female EMT says:

§ 87(2)(b) was in cuffs so he couldn't really throw hands. He was in the leg shackles so he couldn't really do anything. And one of those, he tried to spit on her, so [PO Butler] put her hand so he wouldn't spit on her, and I guess the way that he was moving and the way her hand went, he fell, and he knocked the back of his ear straight on like a corner panel of the wall. And that's where he cut himself open.

Sgt. Garcia asks the two, “Did she ever like touch him? Did she push him?” The male EMT responds, “Because he was going to spit forward, she put her hand up, and then he lost balance. He was getting close, so I think she might have touched him, but it was never like she was going forward.” The female EMT continues and says at the 02:18 timestamp, “He kept on asking her if she punched him. She was like, ‘I never punched you. You fell straight onto the floor.’”

Regarding this incident, Captain Joel Rosenthal prepared a memo for the Chief of Internal Affairs (**BR 04**). Captain Rosenthal ultimately determined that:

Police Officer Blair Butler was attempting to place § 87(2)(b) who was uncooperative and acting in an aggressive manner, back into a chair that inadvertently moved, resulting in § 87(2)(b) falling to the ground striking his head, causing the injury. Police Officer Blair Butler did not, at any point, punch § 87(2)(b) in the head, as he alleged. § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

PO Butler said that she prepared a medical treatment of prisoner form regarding this incident (**BR 26**). Captain Rosenthal listed the report by number in his memo to the Chief of Internal Affairs (**BR 04**). A search conducted by Detective Octavian Hardy of the Legal Bureau revealed negative results (**BR 27**). § 87(2)(g)

§ 87(2)(b)

Captain Rosenthal prepared a TRI regarding this incident (**BR 28**). The narrative of the TRI nearly verbatim copies portions of the memo for the Chief of Internal Affairs.

PO Butler did not prepare a BWC recording at the time of the alleged punch because she was prohibited from recording in hospitals per Patrol Guide Procedure 212-123 (**BR 26, 29**).

Per Patrol Guide Procedure 221-01 (**BR 33**), members of service must consider the following criteria regarding the reasonable use of force: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the MOS; subject's violent history, if known; presence of hostile crowd or agitators; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

It is undisputed that § 87(2)(b) motioned to spit at PO Butler. § 87(2)(b) alleged that in response, PO Butler punched him in the right ear. PO Butler denied doing so; she said that she put her right hand up to block her face from any spit and extended her other hand to grab § 87(2)(b) by his handcuffs to sit him back down. PO Butler ultimately said that § 87(2)(b) fell down due to his weight shifting in his chair. Both EMTs present, who were in a position to see what happened, contemporaneously corroborated PO Butler's account. The RN physically closest to § 87(2)(b) and PO Butler at the time of the alleged punch had no recollection of this incident. Surveillance footage shows PO Butler pulling her arm back then swinging her arm forward towards § 87(2)(b). The footage does not clearly depict how, if at all, PO Butler strikes § 87(2)(b) § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 30).
 - PO Butler has been a member of service for four years and has been named a subject in three complaints and four allegations, none of which have been substantiated. § 87(2)(g)
- § 87(2)(b)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
 - § 87(2)(b) filed a Notice of Claim with the City of New York claiming assault, battery, menacing, harassment, intentional and negligent infliction of emotional distress, violation of statutory and constitutional rights, and violation of civil rights. § 87(2)(b) seeks \$1,000,000 as redress (BR 31). A 50H hearing is scheduled for § 87(2)(b) (BR 34).
 - § 87(2)(b), [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b)
- § 87(2)(b)

Squad: 10

Investigator: Ethan C. Waterman Inv. Ethan Waterman 08/08/2022
Signature Print Title & Name Date

Squad Leader: Maura R. Roche IM Maura R. Roche 08/10/2022
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date